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Date: 6/1/20

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 5.12.110, OPEN CONTAINER-SALES AND CONSUMPTION-EXCEPTIONS, AND SECTION 5.12.120, SPECIAL USE AREAS-SPECIAL EVENT PERMIT, OF CHAPTER 5.12, ALCOHOLIC LIQUOR AND MALT BEVERAGES, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 5.12.110, Open container-Sales and consumption-Exceptions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, is hereby amended as set out in this ordinance.

5.12.110 Open container-Sales and consumption-Exceptions.

A. Except in compliance with Wyo. Stat. Sections 12-4-410 (e) and 12-4-413 (f) and other provisions of this chapter, including Section 5.12.120 Special use areas-Special event permit, no person shall consume or carry in their immediate possession an alcoholic liquor or malt beverage in an open container, either on foot, within a motor vehicle or other means of conveyance, upon city streets, sidewalks, parks, public parking lots, public school property, or without the consent of the owner upon any private parking lot or any private areas that are open to the public, except:

1. The chief of police may authorize the city clerk to issue a consumption permit to applicable applicants requesting to consume or carry an alcoholic liquor or malt beverage in an open container on foot or within a motor vehicle or other means of conveyance as part of a ceremony, show, theatre, parade, or similar public event. A consumption permit does not allow the "sell" or "sale" of alcoholic liquor or malt beverages.

2. The chief of police may authorize the city clerk to issue a consumption permit to applicants requesting to consume or carry malt beverages only in parks and facilities with spaces which may be individually reserved when approved by the city's department director or authorized representative, overseeing the grounds or responsible for reserving the grounds for applicant use in accordance with facility reservation policies.

3. The chief of police may authorize the city clerk to issue a consumption permit to applicants to consume or carry champagne and/or wine only in parks and facilities with spaces which may be individually reserved when approved by the city's department director, or authorized representative, overseeing the grounds or responsible for reserving the grounds for applicant use in accordance with facility reservation policies.

4. Prior to consumption permits being issued, an applicant shall provide the city clerk with a written release, indemnification and hold harmless agreement and agree to assume responsibility relative to liquor liability coverage as approved by the city risk manager or city attorney.

B. The city clerk, with approval by the chief of police, may issue a catering or malt beverage permit, including waiver of open container, to:

1. Applicants requesting to sell alcoholic liquor and/or malt beverages at the Cheyenne-Kiwanis Community House, Cheyenne Botanic Gardens and affiliated facilities, located within Lions Park; the community center located within the David R. Romero South Cheyenne Community Park; Cheyenne Civic Center; and the city-owned ice and events center, when under lease, as authorized by city staff responsible for reserving the facility for applicant use in accordance with facility reservation policies.

2. Applicants requesting to sell malt beverages in conjunction with adult softball/baseball games and tournaments held at the Pioneer Park Baseball Complex and Powers Field Complex, as authorized by city staff responsible for reserving the facility for applicant use in accordance with facility reservation policies. Sales provided under a catering permit shall be restricted to malt beverages only.

3. The chief of police, city clerk and city risk manager may approve catering permits and malt beverage permits for sales, and to consume and carry, in conjunction with events and activities held within Frontier Park. Unless approved by the chief of police and city clerk, catering permits will be restricted to the sale and consumption of wine, including champagne, and malt beverages only.

4. Permits issued under Section 5.12.110 of this chapter shall not be issued unless:

a. The applicant submits proof of general liability coverage, including liquor liability, as approved and in an amount determined by the city risk manager or city attorney. Proof of coverage document must name the city of Cheyenne as an additional insured and certificate holder for the date and location of the event or activities for which the permit will be issued;

b. The applicant provides the city clerk with a written release, indemnification and hold harmless agreement as stated upon the permit application form; and

c. Sales, dispensing and consumption boundaries are approved by the chief of police and city clerk.

C. The city clerk, with approval by the chief of police, may issue a catering or malt beverage permit with waiver of open container for community-based events and activities proposed to be held upon city-owned property, including the Depot Plaza; streets; sidewalks; and rights-of-way. A catering permit may be restricted to sales of wine and/or champagne only.

D. Exceptions.

1. It shall not be unlawful for any person to consume or have in his or her possession any alcoholic liquor or malt beverage in a container that has been open or unsealed where a state limited transportation liquor license has been issued by the Wyoming Liquor Division. While traveling within the city, each vehicle operating under a state limited transportation liquor license must have a copy of the license conspicuously displayed in the rear window of the vehicle.

2. Alcoholic liquor or malt beverages may be consumed by those who are of legal drinking age within a limousine or horse-drawn carriage traveling within the city for the purposes of special private activities, as approved by the chief of police, in which there is no fee for the alcoholic liquor or malt beverages assessed by the owner or operator of the limousine or horse-drawn carriage.

3. The Governing Body may, by resolution, create special areas or districts in which the possession of open containers is permitted between the Friday preceding Memorial Day and Labor Day of each calendar year; however, the periods of time, as well as the boundaries of special areas or districts, may be established and/or modified by resolution adopted by the Governing Body. Additional restrictions on beverage distribution, tracking, and event control may also be established by resolution of the Governing Body.

Section 2. That Section 5.12.120, Special use areas–Special event permit, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, is hereby amended as set out in this ordinance.

5.12.120 Special use areas—Special event permit.

A. Club Premises. Pursuant to Wyo. Stat. Section 12-4-301 (c), a club, as defined in Wyo. Stat. Section 12-1-101, holding a limited retail liquor license may sell alcoholic or malt beverages for consumption by its members and guests from adjoining premises, which are owned or leased by the licensee, of the licensed building as approved by the chief of police and city clerk in conjunction with special events and activities sponsored or hosted by the licensee. The adjoining premises shall not be a separate building.

B. Golf Club Premises. Pursuant to Wyo. Stat. Sections 12-5-201 (g) and (h) and upon written request to the city clerk and approval by the chief of police, retail, limited retail or restaurant liquor licensees operating golf clubs, as defined in Wyo. Stat. Section 12-1-101, may sell, dispense and allow consumption of alcoholic liquor and malt beverages from any location within the boundaries of the golf club premises. Following initial approval by the chief of police, unless a licensee submits written notification to the city clerk that the sale, dispensing and/or consumption of alcoholic liquor and malt beverages is being discontinued by the licensee, approval will remain effective unless the holder of the license changes or the chief of police rescinds his or her approval.

C. Hotel or Motel Premises. Pursuant to Wyo. Stat. Section 12-5-201 (e) and upon approval by the governing body, holders of a resort, retail or bar and grill liquor license, who are engaged in a business operation with motel or hotel sleeping room accommodations at the same premises, may sell alcoholic liquor and malt beverages in sealed containers from a minibar located in a sleeping room of the licensee's hotel or motel premises.

D. Resort Premises. Pursuant to Wyo. Stat. Section 12-5-201 (f) and upon approval by the governing body, a resort liquor licensee may dispense alcoholic liquor and malt beverages from any location within the boundaries of the resort premises. The resort premises shall be a single property within a contiguous boundary upon which the resort is located and which is identified in the liquor license.

E. Sidewalk Premises. Pursuant to Wyo. Stat. Section 12-5-201(a) and upon written request to the city clerk and approval by the chief of police, retail liquor licensees, special malt beverage permittees, satellite distillery permittees, microbrewery permittees, or satellite winery permittees may sell, dispense, and allow consumption of alcoholic liquor and malt beverages on the enclosed sidewalk directly adjacent to the licensed building. The adjoining premises may not include a separate building. All enclosed sidewalk premises as allowed by this section must have a fence which separates the public sidewalk from the permitted sidewalk premises. Plans for the permitted sidewalk premises must be submitted to the city engineer for approval prior to construction and encroachment in the public right-of-way.

~~E. F.~~ Special Event Premises. Pursuant to Wyo. Stat. Section 12-5-201 (k) and upon application to the city clerk and approval by the chief of police, the city clerk is authorized to issue a special event permit to a retail licensee in conjunction with holding an event in the licensed building at which primarily persons under the age of twenty-one (21) are permitted if:

1. No alcoholic liquor or malt beverages are sold, served, consumed or possessed by any person attending the event;
2. No alcoholic liquor or malt beverages are accessible to persons attending the event; and
3. The licensee complies with any additional conditions imposed through administrative procedures on file with the office of city clerk.
4. The chief of police shall have the authority to revoke a special event permit issued pursuant to this section for good cause or for the health, safety and welfare of the community or event participants.

Section 3. That sections currently existing in Chapter 5.12 not set out within this ordinance remain unchanged.

Section 4. That this ordinance shall become effective upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

Marian J. Orr, Mayor

ATTEST:

Kristina F. Jones, City Clerk